

Aging and People with Disabilities**Number: APD-PT-26-003**

Authorized by: Jane-ellen Weidanz

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Subject: Staff Response to Immigration and Customs Enforcement (ICE) Activities

Transmitting (check the box that best applies)

- | | | | |
|--|--|--|---|
| ☐ New policy | ☐ Policy change | ☒ Policy clarification | ☐ Executive letter |
| ☐ Administrative Rule | ☐ Manual update | ☐ Other: | |

Applies to (check all that apply):

- | | |
|--|--|
| ☐ All ODHS employees | ☐ County DD Program Managers |
| ☒ Aging and People with Disabilities | ☐ Developmental Disabilities Services |
| ☒ Area Agencies on Aging: Type A and B | ☐ Self-Sufficiency Programs |
| ☐ Child Welfare Division | ☐ Support Service Brokerage Directors |
| ☐ Children's Intensive In Home Services | ☐ Stabilization and Crisis Unit |
| ☐ Children's Residential Services | ☐ Other (please specify): Enter Text |

Policy/rule title:

Policy/rule numbers:

Release number:

Effective date: Upon release

Expiration date:

References:

Web address:

Discussion/interpretation

There has been increased activity by U.S. Immigration and Customs Enforcement (ICE) in Oregon. This may affect individuals we serve and those who support them. The purpose of this policy transmittal is to provide guidance to Aging and People with Disabilities (APD) and Area Agency on Aging (AAA) staff on how to respond when ICE engages with:

- An individual receiving Medicaid Long Term Services and Supports (LTSS) through APD;

- An Adult Foster Home (AFH) owner/operator; or
- A Home Care Worker (HCW).

This transmittal supports continuity of care, timely communication, and consistent documentation. It does not provide legal advice. Links to additional resources are provided at the end of this transmittal.

Scenario Based Guidance for Staff

When staff learns that ICE has detained or is investigating a person connected to APD services, support the individual and respond within your role. Staff cannot interfere with or guarantee the outcome of any ICE action or immigration proceeding.

Scenario One – ICE detains an individual receiving Medicaid LTSS

Staff should:

1. Confirm basic facts and contacts
 - Confirm who was detained (individual receiving services), when and how APD learned of the detainment, and the individual's current location, if known.
 - If the individual has a representative, attempt to contact them regarding the detainment.
2. Staff and notify
 - Staff the situation with a local office supervisor and others as appropriate to determine needed coordination and any immediate health and safety concerns.
 - Notify local eligibility staff about the detainment so they can plan for appropriate actions in ONE if the individual does not return.
 - Complete a [ROSE](#) form.
 - Provide notification to the APD Service Delivery Administrator (Christy Shipman) and other Senior APD Leadership.
 - Review the service plan, identifying and notifying the appropriate providers that services must be ended.
3. Review and coordinate benefits and payments
 - Take system actions to end LTSS provider payments as appropriate.
 - Do not take actions to close LTSS services or medical benefits unless it is confirmed the individual will not return.
 - If extended waiver eligibility (EWE) services were open on the date of detainment and the individual's services will be closed, email apd.ewe.request@odhsoha.oregon.gov (include name, prime, and date of detainment).

4. Decision notices
 - Issue required decision notices (540 and 540ICP, if applicable) using the rule/reason language outlined in the “Decision notices when services close due to ICE detention” section below.
5. Support communication and continuity of care
 - Encourage the facility/provider and any representative to share necessary information with legal counsel, providers, or staff providing health care services, as appropriate.
6. Document
 - Narrate all actions in Oregon ACCESS (OA), including how APD learned of the detention, steps taken, and the follow-up plan.
 - Schedule a follow-up staffing or case review, if needed, to reassess benefit status and service needs.
7. Avoid legal advice
 - If the individual or representative asks what to do about immigration proceedings, explain that APD cannot provide legal advice and refer them to legal resources.

Scenario 2 – ICE detains an Adult Foster Home (AFH) owner/operator

(Note: For other facility-based settings, the facility administrator or designee must have a plan to ensure care is minimally disrupted if a staff member is detained; staff should support individuals within established roles and processes.)

Staff should:

1. Notify and staff
 - Notify Safety, Oversight and Quality (SOQ) at safetyoversight.andquality@odhsoha.oregon.gov and the Local Licensing Authority (LLA) of the provider’s detention.
 - Complete a [ROSE](#) form.
 - Staff the situation with a local office supervisor, SOQ/LLA, and others as appropriate to determine needed coordination, including:
 - Whether residents (including the individual(s) on your caseload) need to move or other back-up plan alternative;
 - Availability of natural supports; and
 - Immediate care needs (for example, medications, specialty providers, payment sources).
 - Provide notification to the APD Service Delivery Administrator (Christy Shipman) and other Senior APD Leadership.
2. Plan for placement and services
 - If it does not appear the provider will return shortly after detention:

- Begin looking for alternative placement(s) for residents.
 - Determine whether any new placement is temporary or long-term and set up appropriate payment authorizations.
 - Coordinate with families/natural supports as available.
3. End and re-establish services
 - Adjust the service plan authorization as appropriate for individuals receiving Medicaid services who move into a new placement.
 4. Document and coordinate
 - Narrate all actions in OA, including SOQ/LLA guidance, placement decisions, and coordination with residents and families.
 5. Avoid legal advice
 - If residents or families ask about the AFH owner/operator's immigration case, explain that APD cannot provide legal advice and refer them to legal resources.

Scenario 3 – ICE detains a Home Care Worker (HCW)

Staff should:

1. Confirm and staff
 - Obtain available details about the detainment from any available source.
 - Staff with the local office supervisor and others as appropriate to determine needed coordination to ensure individual service needs are met.
 - Provide notification to the APD Service Delivery Administrator (Christy Shipman) and other Senior APD Leadership.
2. Identify and support impacted individuals
 - Determine all individuals for whom the HCW has been providing LTSS.
 - Notify and support each impacted individual; encourage them to implement their back-up plan where one exists and discuss short-term options for maintaining services.
 - Adjust service plans as appropriate and assist with finding and authorizing new providers.
3. End HCW-related payments and contacts
 - End ONGO and unlink the individual from the HCW in Provider Time Capture (PTC) and other applicable payment systems, following standard procedures and effective dates.
 - If it is learned the HCW will not return after detainment, the CM or local HCW coordinator must submit form DHS 2680 (on the form server) to hcw.terminations@odhsoha.oregon.gov to evaluate termination of the HCW's provider number.
 - If the HCW was assisting an Independent Choices Program (ICP) participant, complete and submit a DHS 548 to icp.spd@odhsoha.oregon.gov (include the

HCW's last day working). Let the individual know they should begin searching for a new provider.

4. Document

- Narrate all actions in OA and confirm any required ROSE or internal reporting has been completed.

5. Avoid legal advice

- When individuals ask what this means for the HCW's immigration status, explain that APD cannot advise on immigration matters and refer them to legal resources.

Decision notices when services close due to ICE detainment

When ICE detainment results in an individual not returning to their service setting, CMs must ensure an appropriate decision notice is issued to close services (notification to eligibility staff is also required for any medical/SNAP benefits). This section summarizes the required notice language and forms for a service closure:

A 540 Notice of Planned Action must be issued as follows:

- To receive Long-Term Services and Supports from the State of Oregon, you must be living in Oregon. According to the information we received, you no longer reside in Oregon. Your services are closed effective mm/dd/yy. We made these decisions and issued this notice per authority of Oregon Administrative Rules (OARs) 461-120-0010.

In addition, if the individual was receiving services through the Independent Choices Program, issue a 540ICP Notice to end the benefits at the end of the month.

- In the 540ICP, select "See rules and reasons below" and enter the same rule/reason language above.
- Send a copy of the 540ICP to icp.spd@odhsoha.oregon.gov to inform the ICP Policy Analyst.

Ensure the effective dates on the 540/540ICP align with OA, MMIS, 512, ONE, CEP/PTC, and any other system changes. Narrate that the notice was issued, including the reason for closure and effective date.

Note: Use language found in the [Decision Notice – Service Decision Notice Preparations Tips](#) guide as needed. As previously mentioned, staff may not take adverse action to close medical/services until we know for sure the individual is not going to return to their service setting.

Links to additional resources:

- [Oregon Department of Justice \(DOJ\)](#)
- [National Immigration Law Center](#)
- ICE Online Detainee Locator System: <https://locator.ice.gov/odls/#/search>

Local/branch action required

Begin communicating and taking actions as described above immediately when any situations like those described above occur.

Central office action required

Communicate with providers for LTSS individuals, individuals (LTSS eligible individuals), local office staff, supervisors and Central Office staff regarding the individual's detainment.

Reviewed by impacted parties? ☒ Yes ☐ No

If yes, reviewed by: Policy and Operations review, DOJ

Filing instructions:

If you have any questions, please contact:

Contact(s): APD Medicaid Policy

Email: APD.MedicaidPolicy@odhsoha.oregon.gov